

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

March 12, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Collins. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Erik Rasmussen, Deputy City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Spiker, and pursuant to support received by Ms. Broyles and Mr. Allen, agenda item #16(c) was removed from the Consent Agenda. Upon request by Ms. Broyles, and pursuant to support received by Dr. Rinne and Mr. Brown, agenda item #19(a) was removed from the Consent Agenda. Upon request by Mr. Brown, and pursuant to support received by Ms. Ash and Dr. Rinne, agenda Item #17(a) was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on February 27, 2012. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry regarding a voucher payable to Employers Council Services Inc. (\$2,497.50), Lois Huff, City Treasurer, advised services were for new hire employee background investigations. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from P Public District to HR-2 High Density Residential-Developing District for Lot 1, Block 1, The Pointe, Sixth Filing, Cheyenne, Wyoming (located north of and adjacent to Dorothy Lane, west of Powderhouse Road). Mike Langhoff expressed concern with an increase in traffic volume due to the proposed development. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Ms. Ash. Upon inquiry, Matt Ashby, Planning Services Director, explained that through the development review process an analysis of traffic impacts is conducted. Motion carried. Voting "yes" -- all members of the governing body present. (#3944)

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from MUB Mixed Use with Business Emphasis and MR-2 Medium Density Residential – Developing Districts to CB Community Business District for Lots 1-10, Block One, College Business Park, 3rd Filing, Cheyenne, Wyoming (located east of and adjacent to N. College Drive, between Laramie and Charles Streets) -- referred to Public Services Committee (sponsor - Ms. Ash).

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to HR-2 High Density Residential - Developing District for Lot 4, Block One, Gateway South, 3rd Filing, Cheyenne, Wyoming (located east of and adjacent to Walterscheid Boulevard, south of W. Fox Farm Road) -- referred to Public Services Committee (sponsor - Ms. Ash).

Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Country Homes Subdivision, 3rd Filing, a replat of Lot 4, Block 5, Country Homes Subdivision, Laramie County, Wyoming (located east of Cedar Avenue, between Grape and Peach Streets). Dr. Rinne moved to adopt with staff recommendation #1, seconded by Ms. Ash. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Dr. Rinne voting “no”. (#5364)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for the Pointe, Sixth Filing, a replat of Lot 13, Block 10, The Pointe, Fifth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. Four Mile and Powderhouse Roads). Motion (per Consent Agenda) carried. (#5365)

[CA] Resolution approving Water Service, by User’s Agreement with Marvin Strubhar, 3408 Victoria Drive, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5366)

[CA] Resolution re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & 16-4-113 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for The Crossroads Center, Second Filing, a replat of a portion of Lots 2 and 4, and all of Lot 3, Block 2, The Crossroads Center, Cheyenne, Wyoming (located north of and adjacent to Greenway Street, east of College Drive) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution granting, with conditions, an exception for development of a small wastewater system pursuant to the ‘201 Agreement’ and authorizing the Mayor and City Clerk to execute a development agreement for property described as a tract of land in N1/2N1/2NE1/4NE1/4 of Section 11, Township 13 North, Range 67 West, of the 6th P.M. (a/k/a 4121 West 5th Street), Cheyenne, Laramie County, Wyoming -- referred to Public Services Committee (sponsor - Dr. Rinne).

Wyoming Children's Trust Fund Grant Contract between the City of Cheyenne, Youth Alternatives, Special Friends, and Wyoming Department of Family Services, Protective Services Division, to provide Outreach Mentoring Program services. Ms. Ash declared a conflict of interest (employment conflict) and vacated Council Chambers. Reporting for Finance Committee, Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was noted the substitute provides for wording clarification and includes referenced (attachments) documents. Motion to amend carried. Voting "yes" -- all members of the governing body present in Council Chambers. Main motion as amended carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Ash returned to Council Chambers. (#5805)

Professional Services Letter of Intent between the City of Cheyenne and Kaiser and Company, Cheyenne, Wyoming, to refinance outstanding Series 2003 Revenue Bonds for the City Center Parking Structure. Mr. Brown moved to approve, seconded by Mr. Pierson. Mr. Brown moved to postpone for two weeks (to March 26, 2012), seconded by Mr. Pierson. It was advised the postponement is to allow for review of potential additional funding options. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

Purchase Agreement between the City of Cheyenne and the Housing Authority of the City of Cheyenne, for the purchase of City-owned real property and improvements, commonly known as 515 Morrie Avenue, 916 East 5<sup>th</sup> Street, and 922 East 5<sup>th</sup> Street, Cheyenne, Wyoming. Mike Stanfield, Executive Director, Cheyenne Housing Authority, spoke in favor of the agreement and the opportunity for the Housing Authority to rehabilitate the properties to provide needed housing to low income households. Mr. Brown moved to approve, seconded by Mr. Valdez (revenue to the City in the amount of \$4,441.72). Comments followed regarding previous bid amounts received for the properties that were not approved by the governing body; City's fiduciary responsibility to recoup 6<sup>th</sup> penny funds utilized to initially acquire the properties; expression of interest in the properties recently received from another party; suggestion of re-bidding the properties through another sealed bid process, and status of properties involving any hail damage. Mayor Kaysen verified a second call for bids was not issued following consideration of the first sealed bids received, which were not approved. Motion failed. Voting "yes" -- Mr. Brown, Dr. Rinne and Mayor Kaysen. Voting "no" -- Mr. Allen, Ms. Ash, Ms. Broyles, Mr. Pierson, Mr. Spiker and Mr. Valdez.

[CA] Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Carey Junior High School (21<sup>st</sup> Century Community Learning Centers Cohort Five grant funds) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Johnson Junior High School (21<sup>st</sup> Century Community Learning Centers Cohort Four grant funds) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Police Department, and Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center -- referred to Finance Committee.

Contract Modification No. 2 to Contract No. 5496 between the City of Cheyenne, Engineering Department, and Ayres Associates for additional design services for the East Pershing Boulevard reconstruction project (Phase IV) (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds). Mr. Brown moved to approve in an amount not to exceed \$21,175.00, seconded by Mr. Valdez. Mr. Brown moved to postpone for 2 weeks (to March 26, 2012), seconded by Mr. Valdez. Doug Vetter, City Engineer, stated staff requested postponement to allow time for the consultants to amend the modification to expand the project's scope of work due to additional federal funding. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

[CA] Amendment No. 1 to Professional Services Agreement/Contract No. 5613 between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and Felsburg, Holt and Ullevig for South Greeley Highway Corridor Plan - Supplemental Budget Request -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5697 between the City of Cheyenne and STC Construction Co., Cheyenne, Wyoming, for bridge repairs on the Westland Road Overlay and Improvements Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-25-12 for furnishing one new roll-off truck for the Sanitation Division from Peterbilt of Wyoming, Cheyenne, Wyoming. Motion (per Consent Agenda) carried (amount not to exceed \$139,993.00).

[CA] Consideration of Bid #R-23-12 for furnishing stage drapery for the City of Cheyenne Civic Center -- referred to Finance Committee.

[CA] Consideration of Bid #R-30-12 for surplus sale of one Express Dual 1000 reel grinder, one Anglemaster 2000 bed knife grinder, and one Toro greens aerator for the City of Cheyenne, Parks and Recreation Department, Golf Division -- referred to Finance Committee.

[CA] Consideration of Bid #M-11-12 for annual Contract between the City of Cheyenne and Simon Contractor, Cheyenne, Wyoming, for annual Contract for furnishing aggregate for the Street and Alley Division (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-12-12 for annual Contract between the City of Cheyenne and Knife River, Cheyenne, Wyoming, for annual Contract for hot plant mix, asphalt tack oil and cold mix for the Street and Alley Division (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-13-12 for Contract between the City of Cheyenne, Parks and Recreation Department, and Chalk Buttes Landscaping, Inc., Douglas, Wyoming, for Lions Park Remediation project -- referred to Finance Committee.

Renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery and winery permits) filed with the City Clerk's Office. The name of said applicant, type of license and description of premises which applicant desires to use as the place of sale are set forth as follows: Wigwam, Inc. d/b/a Redwood Lounge and Package Liquor, retail, 2105 E. Lincolnway; Cheyenne Vail Investments, Inc. d/b/a Gus & Jon's Crown Bar, retail, 222 West Lincolnway; Poor Richard's d/b/a Poor Richard's, retail, 2233 E. Lincolnway; W.W. Enterprises, Inc. d/b/a Les' Lamp Lounge and Drive-In Liquor, retail, 101 W. 6th St.; The Blue Bird, Inc. d/b/a Uncle Charlie's, retail, 6001 Yellowstone Road; Langhoff Enterprises d/b/a Two Bar Bowl, retail, 700 E. Carlson; Cadillac Ranch Bar, Inc. d/b/a Cadillac Ranch Bar, retail, 3307 Nationway; Fraternal Order of Eagles Aerie #128, ltd. retail, 1600 Thomes Ave.; B.P.O. Elks #660, ltd. retail, 100 E. 17th St.; W. E. Dinneen, Inc. d/b/a [to be determined], retail, 400 W. Lincolnway; KEG, Inc. d/b/a D.T.'s Liquor Mart & Tusker Bar, retail, 3310 Ridge Road; JKLL, Inc. d/b/a The Drunken Skunk, retail, 1617 Capitol Ave.; Twin Dragon Chinese Rest., Inc. d/b/a Twin Dragon, rest., 1809 Carey Avenue; South Side Bar, Inc. d/b/a Keg 'n Kork Liquors, retail, 822 Central Ave.; Rande's Ritz, LLC d/b/a Midtown Tavern, retail, 1303 E. Pershing Blvd.; Cheyenne Country Club, ltd. retail, 800 Stinner Road; F & G Corp. d/b/a The Green Door, retail, 301 E. Lincolnway; ENI, Inc. d/b/a Eagle's Nest, retail, 1101 W. Lincolnway; Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse, retail, 1626 Fleischli Parkway; Lambousis Revocable Trust d/b/a Mayflower, retail, 112 W. 17th St.; Four Winds, Inc. d/b/a Four Winds, retail, 1103 E. Pershing; EKG, Inc. d/b/a D.T.'s Package Liquor and Lounge, retail, 2121 E. Lincolnway; Alf in Wyoming Enterprise, LLC d/b/a Alf's Pub and Package Liquor, retail, 1622 E. 19th St.; Flatland Investments, LLC d/b/a Godfather's Pizza, rest., 5719 Yellowstone Road; Francis E. Self Post #6 d/b/a The American Legion Post #6, ltd. retail, 2001 E. Lincolnway; The Peaks Cafe II, LLC d/b/a The Peaks Cafe II at the Airport, rest., 300 E. 8th Ave.; F.E. Warren Post #1881 d/b/a V.F.W. Post #1881, ltd. retail, 2816 E. 7th St.; Knights of Columbus Council #801 d/b/a Casey's Club, ltd. retail, 507 W. 28th St.; Blanne Enterprises, Inc. d/b/a Cool River Wine & Spirits, retail, 5225 Yellowstone Rd.; Re-o-na Sushi and Thai d/b/a Re-o-na Sushi Bar and Thai Cuisine, rest., 112 W. 17th St.; One East Sixteenth, LLC d/b/a TBD, retail, 1601 Central Ave.; Airport Golf Club, Inc., ltd. retail, 4801 Central Ave.; Katrina M. and Adam L. Howell d/b/a Scooter's Scoreboard Bar, retail, 507 E. Lincolnway; Cloud 9, Inc. d/b/a Cloud 9 Liquorland, retail, 1958 Dell Range Blvd. #C; Texas Roadhouse of Cheyenne, LLC d/b/a Texas Roadhouse, retail, 1931 Bluegrass Circle; HEJE, Inc. d/b/a Outlaw Liquors, retail, 4503 Western Way; KZ Corporation d/b/a Goofy's Tavern, retail, 2801 E. Lincolnway; Stillwater, Inc. d/b/a Mingles, retail, 1618 Stillwater Ave.; Prairie View Golf Club, ltd. retail, 3600 Windmill Road; Albany, Inc. d/b/a Albany Rest., Bar and Liquormart, retail, 1506 Capitol Ave.; Mehn, Inc. d/b/a Casa De Trujillo, rest., 122 W. 6th St.; S&W Properties, LLC d/b/a Vinos Wine and Spirits, retail, 453 Vandehei Ave., #190; The Plains Hotel Co., LLC d/b/a The Plains Hotel, resort, 1600 Central Ave.; Real Mexican Foods, Inc. d/b/a Los Amigos Rest., rest., 620 Central Ave.; Avanti, Inc. d/b/a Dell Range Liquor, retail, 3806 Dell Range Blvd., Suite 4; Pizza Hut on Yellowstone, Inc, rest., 5320 Yellowstone Rd.; Hotel West I, LP d/b/a Holiday Inn Cheyenne, resort, 204 W. Fox Farm Rd.; AMVETS Post #10, ltd. retail, 3839 E. Lincolnway; Moreno & Reyes, LLC d/b/a Guadalajara Family Mexican Rest., rest., 1745 Dell Range Blvd.; Pizza Hut of Cheyenne d/b/a Pizza Hut/Wing Street, rest., 4503 Western Way; Morris House Enterprises, Inc. d/b/a Morris House Bistro, rest., 2114 Warren Ave.; Bighorn Associates, LC d/b/a Chili's Southwest Grill and Bar, retail, 1320 Dell Range Blvd.; Appaloosa Enterprises, LLC d/b/a Sanford's Grub & Pub, retail, 115 E. 17th St.; Maria Ramos d/b/a El Charrito Mexican Restaurant,

rest., 216 E. 17th St.; Concord Neighborhood Corp. d/b/a Applebee's Neighborhood Grill and Bar, retail, 1401 Dell Range Blvd.; Delilah R. Pineda d/b/a Estevan's Cafe, rest., 1820 Ridge Road; GMRI, Inc. d/b/a Red Lobster #639, retail, 1923 Dell Range Blvd.; Dynasty Café, Inc. d/b/a Dynasty Cafe, rest., 600 W. 19<sup>th</sup> St.; Mondello Corporation d/b/a L'Osteria Mondello, rest., 1507 Stillwater; China Buffet, Inc. d/b/a China Buffet, rest., 1958 Dell Range Blvd.; RGLM, Inc. d/b/a Avanti Italian Rest., rest., 4620 Grandview Ave.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, rest., 115 W. 15th St., #1; Let 'er Buck Investment Group, LLC d/b/a Steamboat's Territorial Steakhouse, retail, (address not yet issued) to be located on Gardenia between Yellowstone and El Camino Real in Cathedral Commons; Nagle-Warren Mansion, LLC d/b/a Nagle-Warren Mansion LLC, rest., 222 East 17<sup>th</sup> St.; OC Cheyenne, LLC d/b/a Old Chicago Rest., retail, 1734 Meadowland Dr.; Sandra J. Innis d/b/a 2 Doors Down, rest., 118 E. 17th St.; Soo Hyun Choi, LLC d/b/a Tokyo Bowl, rest., 1829 Dell Range Blvd.; Jerry P. Innis d/b/a Pizzeria Venti, rest., 112 E. 17<sup>th</sup> St.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, microbrewery, 115 W. 15th St.; Suite 1901, Freedoms Edge Brewing Co., LLC d/b/a Freedoms Edge Brewing Co., microbrewery, 301 W. Lincolnway; Freedoms Edge Brewing 2, LLC d/b/a Freedoms Edge Brewing Co., microbrewery, 1509 Pioneer Ave.; CLLC d/b/a The Winery at 1901, winery, 1901 Central Ave.; OG of Cheyenne, Inc. d/b/a The Olive Garden Italian Rest., bar & grill, 1536 Dell Range Blvd.; Moreno and Aguilar, LLC d/b/a Hacienda Guadalajara, bar & grill, 317 E. Lincolnway; O'Jackson's, Inc. d/b/a Jackson's All American Sports Bar & Grill, bar & grill, 1121 Old Town Lane; Suite 1901, CLLC d/b/a Suite 1901, bar & grill, 1901 Central Ave. City Clerk Carol Intlekofer offered a suggestion that in lieu of reading the list of renewal applicants for the 2012-2013 term, as shown on the meeting agenda, the listing itself be recorded in its entirety in the official minutes of the meeting together with any motions and votes. She noted, pursuant to state statute requirements, publication of notice of renewal applications and posting of notices on respective premises have been achieved, and the holding of a public hearing before the governing body has been conducted. She further stated that the City Attorney has advised that this statement on the record provides sufficient documentation to identify those individual renewal applications that may be acted upon at the meeting. Upon query by Mayor Kaysen to members of the governing body, there was no objection voiced to recognize the renewal applicants as listed on the agenda in lieu of the Clerk reading the individual applicants, and Mayor Kaysen announced the reading of renewal applicants' information would be waived. Robert Langhoff, co-owner, Two Bar Bowl, advised he was available to answer any questions. Mr. Brown moved to approve renewal of liquor licenses, seconded by Mr. Valdez. Mr. Brown advised, pursuant to discussion at Finance Committee, it was intended that the recommendation to approve the renewal applications for One East Sixteenth, LLC and Let 'Er Buck Investment Group, LLC d/b/a Steamboat's include continuation of the conditions the governing body placed on the licenses at its July 25, 2011 meeting, but the Committee's motion to recommend approval did not specify continuation of the conditions for these applicants. Mr. Brown moved to divide the question to allow for separate action on the liquor renewal application filed by One East Sixteenth, LLC, seconded by Mr. Allen. Motion to divide the question carried. Voting "yes" -- all members of the governing body present. Mr. Brown moved to approve the renewal application filed by One East Sixteenth, LLC with the condition that a lease agreement with a restaurant establishment to operate within the building must be signed no later than July 25, 2012 or the license will revert to the City, seconded by Mr. Allen. It was noted the license was initially approved July 25, 2011 with the same condition and the motion on the floor confirms the condition remains in place. Ms. Intlekofer clarified if renewal of the license is approved, the license term will be the same as other annual licenses, which

term is from April 1<sup>st</sup> through March 31<sup>st</sup> each year, and if the licensee does not comply with the condition by the July 25<sup>th</sup> date, the City may need to pursue legal procedures available to revoke the license. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Dr. Rinne voting “no”. Mr. Brown moved to divide the question to allow for separate action on the liquor renewal application filed by Let ‘Er Buck Investment Group, LLC d/b/a Steamboat’s, seconded by Dr. Rinne. Motion to divide the question carried. Voting “yes” -- all members of the governing body present. Mr. Brown moved to approve the renewal application filed by Let ‘Er Buck Investment Group, LLC d/b/a Steamboat’s with the condition that construction of the establishment must begin no later than July 25, 2012 or the license will revert to the City, seconded by Mr. Spiker. James Yates, Let’Er Buck Investment Group, advised he was present to answer any questions and stated they are planning on fulfilling the July deadline condition. Pursuant to inquiry concerning use of the term “construction” vs. “remodeling”, Matt Ashby, Planning Services Director, expressed his belief that if a condition is for a building to be “under construction” or “remodeled” that there is no difference in terminology as far as both would require a building permit. Discussion included the following topics: Concerns with regard to the initial issuance of the license, which was for a specific restaurant theme plan within a newly developed area (The Commons) in north Cheyenne; parking and property acquisition issues involving the initial site within The Commons development; possible future change in location (to Dell Range Blvd.) for the proposed restaurant affiliated with use of the license, and utilizing retail liquor licenses for the purposes of economic development. Mr. Yates provided information on Steamboat’s project status, advising they are close to entering into a lease agreement for a different site; reviewed his history as a business/restaurant owner in Wyoming, specifically Cheyenne, and being fiscally responsible to shareholders involved in the project, and monetary investment by shareholders to date, and explained the business plan has remained the same. Shelly Clements, Let ‘Er Buck Investment Group shareholder, provided information relative to parking issues at the initially proposed business lots located at The Commons, which has resulted in the group looking for an alternative location. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Ash and Dr. Rinne voting “no.” Ms. Broyles moved to divide the question to allow for separate action on the liquor renewal application filed by Two Bar Bowl, seconded by Mr. Pierson. Motion to divide the question carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Ash and Mr. Valdez voting “no”. Ms. Broyles moved to approve the renewal application for Two Bar Bowl, seconded by Mr. Spiker. Comment of concern was expressed regarding underage drinking at the establishment. Robert Langhoff, Two Bar Bowl, provided information relating to their efforts to reduce and eliminate potential underage drinking opportunities, advising they have diligently worked with the Police Department and have passed all compliance checks and TIPS certifications, and have taken responsible steps to enforce policies. Ms. Ash stated that due to child issues she would be excusing herself from attendance at the remainder of the City Council meeting (City Clerk note: Ms Ash vacated Council Chambers at 6:55 p.m.). Upon inquiry, Officer Steve Neisen, Cheyenne Police Department, explained he has worked closely with staff at Two Bar Bowl on ways to reduce and eliminate drinking under age (DUA) availability within the establishment’s open concourse area, and provided information on enforcement strategies and the number and types of police calls for service. Mr. Langhoff explained his concerns with enforcement and communication, and suggested more timely communication to all licensees be provided by the Police Department regarding the number of calls for service affiliated with the department’s annual report submitted during the renewal process, and particularly prior to the annual

public hearing. Discussion followed and included information from Officer Neisen regarding security, enforcement, the department's new community alcohol educational program, and the unique environment involving the bowling alley as both an adult and youth recreational area. Motion carried. Voting "yes" -- all members of the governing body present. Ms. Broyles moved to divide the question to allow for separate action on the liquor renewal application filed by Stillwater, Inc. d/b/a Mingles, seconded Mr. Pierson. Motion to divide the question carried. Voting "yes" -- Mr. Allen, Ms. Broyles, Mr. Pierson, Dr. Rinne and Mr. Spiker. Voting "no" -- Mr. Brown, Mr. Valdez and Mayor Kaysen. Ms. Broyles moved to approve the renewal application for Stillwater, Inc. d/b/a Mingles, seconded by Mr. Spiker. Owen Groshart, Mingles representative, stated he was available to answer any questions. Upon inquiry, Officer Neisen reviewed the number and types of incidents that had occurred based on calls for service, per the department's annual report, and explained operational changes that have or will be occurring and training that will be provided to servers by the Police Department regarding "over service" situations. Motion carried. Voting "yes" -- all members of the governing body present. Ms. Broyles moved to divide the question to allow for separate action on the liquor renewal application filed by W.W. Enterprises, Inc. d/b/a Les' Lamp Lounge, seconded by Mr. Pierson. Motion to divide the question failed (due to a tie vote). Voting "yes" -- Mr. Allen, Ms. Broyles, Mr. Pierson and Mr. Spiker. Voting "no" -- Mr. Brown, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Discussion followed on the main motion, excluding those renewal licenses already acted upon. Officer Neisen responded to inquiries regarding underage drinking concerns at various locations within the community, specifically a recent incident at Romero Park; confirmed the Lamp Lounge has a very positive system for tracking of incidents; addressed training and changed practices and policies for many liquor licensees (i.e. Red Lobster, Pizza Hut/Wing Street (east location) and Crown Bar) based upon the department's report information and inquiry by City Council members during this year's renewal process. Dave McGee, provider of security services for Lamp Lounge, reported on incident tracking and security operations at the Lamp, and stated they are working closely with the Police Department. Comments followed regarding DUAs, possible legislation to require a "must appear" status when someone is cited into municipal court for an underage drinking offense, and self-responsibility of youth and young adults to know right from wrong. Main motion to approve renewal of remaining liquor licenses (re: those not acted upon pursuant to separate motions) carried. Voting "yes" -- all members of the governing body present.

Appointment of James W. Hearne, Tucker Fagan and William C. Beaman to the City of Cheyenne, Wyoming-Laramie County, State of Wyoming Joint Powers Board for Frontier Park improvements. Ms. Broyles moved to approve, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of the Appointment of Catherine Nicholas and Maida Wedell to the Arts In Public Places Committee to be confirmed March 26, 2012.

Under other business, Deputy City Attorney Erik Rasmussen requested the governing body meet in executive session to discuss matters involving pending potential litigation. Mr. Pierson moved to meet in executive session, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the Deputy City Attorney,

City Clerk, and other staff as requested by the Deputy City Attorney, be present at the executive session, and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk's Note: Executive session convened at 7:55 p.m. following a brief recess.)

There being no further business to come before the governing body prior to the executive session, the meeting was officially adjourned at 8:21 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

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